

April 6, 2026
Dept. 9
Probate Tentative Rulings

1.	25PR0362	IN THE MATTER OF THE 2016 CHARLES H. CONN REVOCABLE TRUST
Confirming Trust Assets / OSC Hearing to Remove Trustee		

Petitioner is a beneficiary of the 2016 Charles H. Conn Revocable Trust ("Trust") and received a Notice of Irrevocable Trust, dated October 21, 2025 (Petition, Exhibit A), which notified her that her brother, Ronald Conn, is the current trustee of the Trust due to the incapacity of their father and the settlor of the Trust, Charles Conn. Petitioner responded to the notice on October 23, 2025, with a written demand that the real property that is an asset of the Trust be appropriately placed in the name of the Trust, whereas it is currently titled in the name of the settlors as joint tenants. She also demanded a copy of the Trust and the settlor's Will, an inventory of Trust assets and associated statements for financial accounts, the current location of any personal property that has been removed from the property since the date of the settlor's incapacity, and information on the registration and titling of any vehicles owned by the settlor.

The Petition was filed on December 22, 2025. Subsequently the settlor died on February 13, 2026.

Petitioner contends that the Court has jurisdiction over the matter because, although the trustee resides in Tennessee, the settlor is a California resident, citing Probate Code § 17004.¹ Probate Code § 17002 provides that the principal place of administration of a trust is "the usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for the administration of the trust." In this case, the fiduciary duty of the trustee is to care for the needs and assets of the settlor, who is a California resident and resides in real property located in El Dorado County. "By accepting the trusteeship of a trust having its principal place of administration in this state the trustee submits personally to the jurisdiction of the court under this division." Probate Code § 17003(a). This conclusion is confirmed by the fact that the trustee provided the Notice of Irrevocable Trust pursuant to California Probate Code § 16061.7. Petition, Exhibit A.

Petitioner requests that the trustee be removed pursuant to Probate Code § 15642 for failing to perform legally required accountings under Probate Code § 16062-16063 and for failure to provide information to Trust beneficiaries as required by Probate Code § 16060- 16061.5.

The Petition further requests that the Court find the real property listed in the Petition is an asset of the Trust and order that it be placed in the name of the Trust. The Petition attaches as Exhibit C is a final judgment dated August 21, 2020, determining the separate property interests of the settlor and his former spouse, Jacquelyn Hartsough, in the real property. Hartsough has been notified of these proceedings due to her potential interest in the real property.

¹ Probate Code § 17004: The court may exercise jurisdiction in proceedings under this division on any basis permitted by Section 410.10 of the Code of Civil Procedure.
Code of Civil Procedure § 410.10: A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.

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At the hearing on March 2, 2026, the Court instructed the trustee to provide Petitioner with a copy of the Trust and an inventory of all Trust assets, then continued the matter to provide an opportunity to provide notice of the hearing to all Trust beneficiaries.

Following the hearing, Petitioner filed a supplemental Declaration establishing the existence of a Wells Fargo savings account that was held in the settlor's sole name until some time between March 31, 2025 and June 30, 2025, by which time the trustee was added as joint account holder. The Declaration also attaches copies of text messages indicating hostility between the trustee and Petitioner. Declaration of Deanna Martynse, dated March 24, 2026, para. 24, Exhibit 2.

Counsel for the trustee filed a Declaration, dated March 25, 2026, addressing the following issues raised by the Petition:

- Trustee became sole trustee of the Trust as of the date of the settlor's incapacity on April 29, 2025, and the trustee's position was that from that time until the settlor's death on February 13, 2026, the decedent was the only beneficiary of the Trust and the only party with standing to demand an accounting. Petitioner and the trustee communicated through counsel on these issues between December 2025 and February 4, 2026, without resolution. Declaration of Uri Grant, dated March 25, 2026, ("Grant Declaration") paras. 3-5, Exhibit 1.
- On February 23, 2026, trustee's counsel informed Petitioner's counsel of the settlor's death providing information about the proposed steps to transfer title of the real property to the Trust, which was complicated by the fact that the settlor had never retitled the property in his name as sole owner after his divorce from Hartsough. The letter further detailed a plan to provide an accounting of Trust assets, and finally, offering to discuss the issues raised in the pending Petition now that Petitioner had standing as a vested beneficiary. Grant Declaration, para. 6, Exhibit 2.
- On March 2, 2026, the Court ordered the Trust to provide information to Petitioner, which the trustee accomplished on March 18, 2026. Grant Declaration, para. 8-9, Exhibit 3. This did not include assets held in the settlor's name, which were part of his estate, not part of the Trust assets. Grant Declaration, para. 12. It did include a real property in Arizona and a vintage car collection. Grant Declaration, para. 13.
- The Wells Fargo savings account referenced in the Petition is held in the names of the settlor and the trustee as joint owners and is not a Trust asset. Grant Declaration, para. 14. This joint title was established before the April 29, 2025 date of settlor's incapacity. *Id.*, para. 15-16.
- Petitioner has specified no grounds for removal of the trustee, especially considering that the settlor passed two months ago and the trustee has been forthcoming and communicative to the beneficiaries. Grant Declaration, para. 17-18.

TENTATIVE RULING #1: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, APRIL 6, 2026, IN DEPARTMENT NINE.